

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MAY 27, 2026
8:30 a.m.

2. HERVE GOGUELY V. SYLVIE GOGUELY

24FL0466

This matter is before the court for hearing of four separate Requests for Order (RFO).

The first RFO, filed by the Petitioner on February 04, 2026, requests the court to modify spousal support.

The second RFO, filed by the Respondent on February 25, 2026, requests: (1) a finding that Petitioner breached his fiduciary duties by selling the Alameda Property, a community property asset, without Respondent's knowledge or consent, by refusing to account for the sale proceeds, and by failing to deposit the sale proceeds into an attorney trust account; (2) an order that Petitioner immediately account for the sale of the Alameda Property and return/deposit all proceeds into an attorney trust account held by Respondent's attorney; (3) an order sanctioning Petitioner in the amount of \$5,500 for the fees and cost associated with the filing of this RFO; and (4) an order for further need-based attorney fees in the amount of \$15,000.

The third RFO, filed by the Respondent on March 03, 2026, requests the court to: (1) set aside or vacate the April 24, 2025, Ruling (and Amended Ruling) regarding spousal support; and (2) re-calculate spousal support retroactive to November 1, 2024, setting spousal support at \$6,499 per month.

Lastly, the fourth RFO, also filed on March 03, 2026, by the Respondent, requests an additional \$75,000 of need-based attorney fees.

The court notes that the parties are currently set for trial on all issues for three dates in late August and early September 2026 (August 27 and 31, and September 3). Trial confirmation is currently set for August 19, 2026. The court intends to make interim orders on the submitted RFOs pending resolution of the case in its entirety.

Presently, the court is inclined to rule on the RFOs as follows: (1) the court denies Petitioner's RFO to modify spousal support without prejudice; (2) the court defers Respondent's breach of fiduciary claim and request for attorney fees as sanctions to the time of trial; (3) the court orders, without prejudice to further application, Petitioner to pay \$65,000 in need-based attorney fees to Respondent's attorney; (4) the court awards Respondent monthly spousal support in the amount of \$6,499 beginning April 01, 2026; (5) Petitioner is ordered to pay Respondent \$5,849.10 spousal support for the month of March 2026 (90 percent of the monthly spousal support amount); and (6) the court will reserve on the issue of retroactive spousal support to the time of trial.

**TENTATIVE RULING #2: APPEARANCES ARE REQUIRED AT 8:30 A.M.,
WEDNESDAY, MAY 27, 2026, IN DEPARTMENT 12 FOR ORAL ARGUMENT ON THE FOUR
SEPARATE REQUESTS FOR ORDER.**